

		physicians’ own contemporaneous notes and our communications with the expert service, we have reason to believe that, upon that review, a qualified neonatologist will opine that the post-delivery and neonatal care fell below the standard of care and caused or contributed to Krishna’s injuries. Krishna's treating pediatric neurologist has also expressed willingness to testify.” (Menon Decl. at ¶ 12.) A “willingness to review” the medical records is far from showing that Plaintiffs have retained an expert who is willing to provide a competing opinion. Even assuming for the sake of argument that Plaintiffs could find a competing expert opinion on these issues, it would be inappropriate to expand summary judgment beyond the limits of the material allegations in the complaint. Defendant shall give notice of the ruling.
10	Takahashi vs. American Honda Motor Co., Inc. 2024-01384148	Motion to Compel Deposition (Oral or Written) The Court denies Plaintiff Mariko Takashashi’s Motion for a second session of the Person Most Qualified deposition for Defendant American Honda Motor Co. Inc. and for further production of documents. The Court also notes a failure to adequately meet and confer as set forth in Miner’s declaration and per the Court’s Order. (Miner Decl., ¶¶26-33.) The Court also notes that California Rules of Court, rule 2.551(a) states plainly that a record must not be filed under seal without a court order, and the court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties (Rules of Court, Rule 2.551.) Moving to the merits, the Motion is denied. The person or persons designated by the entity must testify to the extent of any information known or reasonably available to them. (CCP § 2025.230.) Here, this Motion is made pursuant to Code of Civil Procedure §§ 2025.450 and 2031.310, et seq. according to the Notice of Motion. If, after the service of a deposition notice, a party, or an officer, director, managing agent, employee, or designated deponent of a party, fails to appear, testify, or produce documents, electronically

stored information, or tangible things for inspection without having served a valid objection under CCP §2025.410, the deposing party may move for an order compelling attendance, testimony, and production. (CCP §2025.450(a).) The motion must show good cause to justify the production of the document, electronically stored information, or tangible thing described in the deposition notice. The motion must be accompanied by a declaration showing a reasonable and good faith attempt to informally resolve each issue presented, or, when the deponent fails to attend the deposition and produce the requested documents, electronically stored information, or things, the motion must be accompanied by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. (CCP § 2025.450(b).)

Under Code of Civil Procedure section 2025.480(a), a party may seek a court order compelling an answer or production “if a deponent fails to answer any question or to produce any document...under the deponent’s control that is specified in the deposition notice...”

Plaintiff does not move under this statute and does not identify any question were counsel instructed not to answer. There are no

The deposition of Defendant’s PMQ, Delmy Rosales Garcia, was completed on November 25, 2025. (Miner Decl. ¶ 22.) Defendant says that there is no other person more qualified than the witness provided because the representative that spoke with Plaintiff in 2017, when Plaintiff contacted Honda, is no longer employed by Honda and nine years have passed since the purchase of this vehicle. (Ex. C, p. 45:22-25.)

Plaintiff takes issue with the fact that the witness did not know why a repurchase of the vehicle was not offered. But Defendant’s PMQ testified that in response to Plaintiff’s pre-litigation repurchase request, no analysis was performed as to whether to repurchase. (Tr. 45:19-21.) She further testified that she did not know why the case was closed without escalation: ‘Everything else would be speculation. Unfortunately, the inbound representative is no longer with American Honda.’ (Tr. 45:22-25.) Plaintiff acknowledges on reply that “...nothing happened — not because AHM lacked procedures, but because no one followed them.” (Reply, p. 3:24-25.) Plaintiff also takes issue with the witnesses testimony that she did not review service bulletins, there are no questions at issue that she was instructed not to answer.

A corporation is not required to produce any of its former officers, directors, managing agents, or employees in response to a deposition

		notice, even when such persons are far more knowledgeable about the litigation than anyone currently employed by the company. However, such individuals may be subpoenaed. (<i>Maldonado v. Superior Court</i> (2002) 94 Cal.App.4th 1390, 1398.) Further, the Court sustains objections to the areas of testimony at issue on the grounds that they are overbroad, violate the attorney-client privilege, and work product protections as worded. As to the document demands, Plaintiff seeks to compel the production of documents from Document Demand Nos. 10, 12-30, 34, 47, 58-60, 62-63. “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (<i>Digital Music News LLC v. Superior Court</i> (2014) 226 Cal.App.4th 216, 224.) Plaintiff has not shown good cause for the breadth of the requests. Further, the Court sustains Defendant’s objections. Thus, the Motion is denied. Plaintiff is ordered to serve notice.
10	Wilson vs. Dan	Motion for Continuance for Plaintiff to Lodge a Security Bond
	2025-01523063	Moot and off calendar.